

ANNEXATION REPORT & STAFF REPORT

Terre Pont Annexation **Summation**

Annexation

(Please note: This is the staff report for both the resolution and ordinance.)

CASE NUMBER: UDC-13-00270

FILE CODE: TERP-A

PUBLIC HEARING: August 26, 2013

REQUIRED

DOCUMENTS: All required documents have been submitted and reviewed by staff.

- Complete Application
- Petition signed by property owners
- Annexation Map (revised map submitted August 10, 2013)
- Soils report
- Signed clearance from Board of Public Utilities

RECOMMENDATION: Staff recommends adoption of the resolution and ordinance.

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Terre Pont Annexation Summation

Annexation

CASE NUMBER: UDC-13-00270 **FILE CODE:** TERP-A

OWNER: Edward George Cole, et al (303) 659-7262
15649 Harvest Mile Rd
Brighton, CO 80603

**APPLICANT/
AGENT:** Mark Butler (307) 635-6827
Inberg-Miller Engineers
350 Parsley Blvd
Cheyenne, WY 82007

REQUEST: Annexation to the City of Cheyenne

LOCATION:

1) Legal Description: Portion of South Half of Section 20, T.14N., R.66W., 6th P.M.,
Laramie County, WY

2) General Location: Northeast corner of Prairie Avenue and Frontier Mall Drive

3) Address: Vacant land

SIZE: 8.45 acres (2.19 acres of proposed right-of-way)

CURRENT ZONING: A-1, Agriculture & Rural Residential, and MU, Mixed Use (County)

PROPOSED ZONING: CB, Community Business

EXISTING LAND USE: Vacant land

PROPOSED LAND USE: Hotel and future commercial development

SURROUNDING LAND USES:

DIRECTION	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Vacant	A-1	County
South	Retail	PUD	City
East	Vacant	A-1, MUB	City, County
West	Retail	CB	City

SUMMARY:

The owners of this 8.45-acre area at the northeast corner of Prairie Avenue and Frontier Mall Drive have petitioned the City to annex the land into the City in order to sell the proposed Lot 1 to an extended-stay hotel developer. The remaining proposed lot would remain undeveloped for the time being. A concurrent preliminary plat and zone change application has been submitted as well.

Wyoming State Statutes require that prior to annexing territory to the City certain steps must be followed, including the governing body conducting a public hearing and finding that the territory is eligible for annexation. The statutes list six criteria that must be met for the territory to be eligible for annexation. The attached resolution finds compliance with these six criteria. The attached ordinance would approve the annexation, allowing the annexation map to be recorded and the property brought into the City. Staff recommends adoption of the resolution and ordinance.

DESCRIPTION OF SITE AND SURROUNDINGS:

The subject property is approximately 8.45 acres of vacant land northeast of and adjacent to Frontier Mall Drive and Prairie Avenue. On the east side of the property is the platted but unbuilt Cutoff Road. The land raises several feet from Prairie Avenue, then slopes back down to where Rue Terre aligns. Frontier Mall Drive is fully constructed including the sidewalk. Prairie Avenue is built, but the sidewalk will need to be constructed as the property develops. Rue Terre and Cutoff Road are not constructed. Prairie is considered a minor arterial roadway. Frontier Mall Drive and Rue Terre are considered collectors.



Looking northwest at subject property from south side of Prairie Avenue.

COMPREHENSIVE PLAN:

LAND-USE AND ZONING: The property is within the Urban Service Boundary. The Future Land Use Plan map in PlanCheyenne indicates Community Business for this property, which is primarily appropriate for general retail and office uses. Hotels and motels are a permitted use in the CB zone district, which is proposed for this property in the associated zone change application.

POLICIES AND PRINCIPLES: Principle 3.1 in PlanCheyenne states: “Our community will continue to promote a thriving and vital economy.” Principle 4.1 states: “Roadways in and around our new neighborhoods will be designed to accommodate traffic growth” and Policy 2.2.c states, in part: “Neighborhoods should have connected streets and sidewalks to make walking and bicycling safe and convenient.” The preliminary plat proposes dedicating right-of-way to match the existing right-of-way of Rue Terre (140 feet in width); however construction of the road would not extend beyond the plat boundaries, meaning there will be no access to the proposed hotel from Rue Terre until that section is constructed. Instead, motorists on Rue Terre or the Sam’s Club east of Rue Terre will have to get on Dell Range and turn onto Prairie Avenue to get to the hotel. Many motorists cut through K-Mart’s parking lot or drive behind the store. As discussed in the staff report on the preliminary plat, this may create pressure on the City to pay for construction of Rue Terre in this “missing link.”

TRANSPORTATION: Similarly, the basic vision of the Transportation Plan is to provide residents “an adequate, connected, multi-modal transportation system.” The proposal completes a portion of the missing section of Rue Terre but leaves approximately 460 feet unconstructed.

ANNEXATION ELIGIBILITY DATA/ANALYSIS:

Before any territory is eligible for annexation, the governing body must find that the following criteria are met (W.S. § 15-1-402 (a)):

- 1) “An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town.” **Findings:** Ensuring development connects to City sewer rather than utilizing septic systems promotes public health for area residents. Likewise, having development served by City police serves the public safety and welfare of area residents.
- 2) “The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town.” **Findings:** The property abuts existing City limits on three sides and is part of a larger area surrounded by annexed property. The site is located within the PlanCheyenne comprehensive plan area and planned for urban services expansion. People who will work in this area will likely reside, shop, and recreate in Cheyenne facilities.
- 3) “The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to the residents of the city or town shall, within reason, be available to the area proposed to be annexed.” **Findings:** The area sought to be annexed is planned for urban services expansion in numerous City planning documents including PlanCheyenne and the Board of Public Utilities master plan. The City’s water and sewer system has capacity to serve this area and lines are in place on two sides of the property. Development will be required to include extension of water and sewer lines, stormwater lines, and street improvements. Services customarily available to residents in Cheyenne will be available to the subject property.

- 4) “The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. § 15-1-407.” **Findings:** The property is approximately 68.6% contiguous with existing City limits.
- 5) “If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. § 15-1-410.” **Findings:** Franchises are in place to serve this property.
- 6) “The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. § 15-1-405(a).” **Findings:** The required information was sent July 26, 2013.

ANNEXATION REPORT DATA:

In compliance with W.S. § 15-1-402 (c) the following information is provided:

- (i) A map is not required for this report based on the absence of exercising the authority granted under W.S. § 15-3-202 (b) (ii).
- (ii) The total estimated cost of infrastructure improvements required of the landowners by the City related to the annexation is approximately \$0.00. All improvements are deferred until time of development.
- (iii) Services customarily available to City residents include water, sewer, sanitation, police and fire protection. Water and sewer service is available to the property. Water and sewer services are provided upon application and payment to the Board of Public Utilities, with sanitation services occurring concurrently. Provision of these services is initiated by the property owner. Police and fire protection will be provided upon annexation.
- (iv) Fees for water, sewer, and sanitation services are variable based upon volume. Tap fees vary based on the size of the tap required.
- (v) The current property tax mill levy imposed is 66.00 and projected property tax mill levy imposed by the city is 71.00.
- (vi) Requirements for off-site improvements will be evaluated at the time of development.

REVIEWING AGENCY AND REVIEWERS COMMENTS:

Board of Public Utilities:

The property Owners will be required to extend the sanitary sewer utilities from its current location to the farthest point (or points) of the property being annexed along Rue Terre. The existing 8" water main on the west end of Rue Terre will need to be extended from its current location to tie into the exiting 12" water on the east end of Rue Terre to complete the water main loop. These utility extensions shall be to a point (or points) that are logical for projected future connections to future development projects, as determined by the BOPU and the property owners/developer.

Charter Communications (formerly Optimum):

Charter communications has fiber optics in the road ROW at the north west corner of the intersection of Prairie Ave and Cut Off Road. This fiber line crosses Prairie from the south to this corner then crosses Cut Off Road from this corner east to the 10' utility easement along the north property line of Lot 1 Block 1 of Terre Fini 2nd Filing.

City Surveyor: (Note: These comments were addressed with a revised map.)

1. Boundary data appears in order for mathematical closure.
2. A symbol for the SET REBAR W/ALUMINUM CAP called for in the LEGAL DESCRIPTION at the easterly end of the curve on the northerly boundary is not shown, and is required. Also, the LEGEND needs to have a symbol and description for these set corners.
3. There are two minor discrepancies between the map data shown and the calls in the LEGAL DESCRIPTION. FIRST: the distance for the northwesterly boundary course calls for a distance of 700.75' on the map, but calls for 700.76' in the LEGAL DESCRIPTION; SECOND: the distance for the long chord of the curve along the easterly boundary calls for 120.48' on the map, but calls for 120.49' in the LEGAL DESCRIPTION. These discrepancies are required to be rectified.
4. City Code 1.12.020 - C.1 - 3 requires that two (2) City Control Stations be used for survey ties to the City Control Ground Datum. Only one (1) City Control Station "YOD" is shown on this plat. The second station used, must be shown and identified. Also, the published City Ground Datum coordinates for these Control Stations must be provided as well.
5. City Code 1.12.020 - C.1 - 3 also requires that two (2) monumented corners of one course of the boundary also have the City Ground Datum coordinates provided. The corner tied to the Control Stations and the monument on the other end of the first course, generally. If copy of the City Code is required, please contact us.
6. Wyoming Statute 15-1-415, paragraph (b)(ii) states: "Have appended a survey made by a land surveyor registered under the laws of this state with a certificate that he has accurately surveyed the addition...". We therefore require a "CERTIFICATE OF SURVEYOR" for the plat drawing, as opposed to the "STATEMENT OF SURVEYOR" provided. The language in the body must be changed as well to change the term "state" to "certify".
7. On this ANNEXATION MAP there is no right of way appearing for the purpose of confirming the square footage figure provided. I have in fact confirmed it with the PRELIMINARY PLAT drawing, but it should also appear here as well.

AGENCIES RESPONDING WITHOUT COMMENT: City Attorney, County Planning, Development, Drainage Engineering, Engineering, Traffic Engineering (Note: Several comments regarding platting and site plan were provided to the applicant), Engineering Tech/GIS, Fire, School District #1, Land Record Technician, MPO, Public Works.

AGENCIES NOT RESPONDING: CenturyLink, Cheyenne Light Fuel & Power, County Assessor, County Clerk, High West Energy, Laramie County Conservation District, Police.

OTHER COMMENTS RECEIVED: None.

Encl: Annexation Resolution
Annexation Ordinance
Annexation Map

cc: Agent and Owner
File

Terre Pont Annexation, Preliminary Plat, and Zone Change

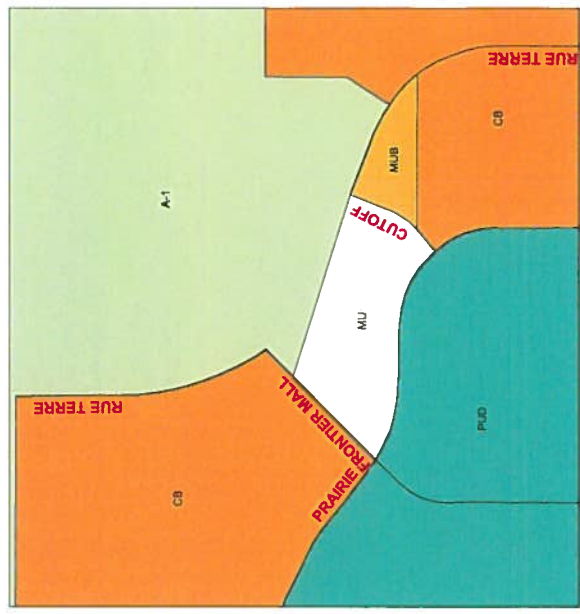


1 inch = 0.02 miles

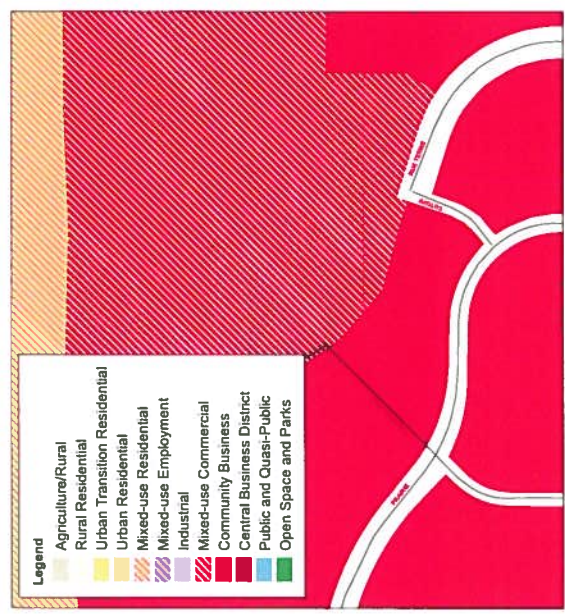
PROJECT NUMBERS:
ANNEXATION: UDC-13-00270
PRELIM. PLAT: UDC-13-00271
ZONE CHANGE: UDC-13-00272



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Current Zoning



PlanCheyenne Future Land Use